

25STCV30141 25STCV30141

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-07-16

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Case Number: 25STCV30141 Hearing Date: July 16, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

MARLEN SOLANO

, et al.;

Plaintiffs,

vs.

CITY OF LOS ANGELES

, et al.;

Defendants.

Case

No.:

25STCV30141

Hearing

Date:

July
16, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

motions to be relieved as counsel for
plaintiff

MOVING PARTY: Plaintiffs' Counsel, Chirstopher
B. Dolan, Maria Pappas-Rajotte, Allison Stone, and Anna Pantsulaya of Dolan Law
Firm, PC

RESPONDING PARTY: Unopposed

Motions to be Relieved as Counsel for Plaintiffs

The court considered the moving papers filed in connection with these motions. No opposition papers were filed.

DISCUSSION

Christopher B. Dolan, Maria Pappas-Rajotte, Allison Stone, and Anna Pantsulaya on behalf of Dolan Law Firm, PC (“Plaintiffs’ Counsel”) have filed separate motions to be relieved as counsel for plaintiffs Marlen Solano and Ulises Rangel (“Plaintiffs”) in this action.

“The question of granting or denying an application of an attorney to withdraw as counsel (Code Civ. Proc., § 284, subd. 2) is one which lies within the sound discretion of the trial court ‘having in mind whether such withdrawal might work an injustice in the handling of the case.’” (People v. Prince (1968) 268 Cal.App.2d 398, 406 [internal quotations omitted].) The court should also consider whether the attorney’s “withdrawal can be accomplished without undue prejudice to the client’s interests.” (Ramirez v. Sturdevant (1994) 21 Cal.App.4th 904, 915.)

For a motion to be relieved as counsel under Code of Civil Procedure section 284, subdivision (2), California Rules of Court, rule 3.1362 requires (1) a notice of motion and motion directed to the client (made on the Notice of Motion and Motion to be Relieved as Counsel -- Civil form (MC-051)); (2) a declaration stating in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284, subdivision (2) is brought instead of filing a consent under Code of Civil Procedure section 284, subdivision (1) (made on the Declaration in Support of Attorney's Motion to Be Relieved as Counsel -- Civil form (MC-052)); (3) service of the notice of motion and motion, declaration, and proposed order on the client and on all other parties who have appeared in the case; and (4) the proposed order relieving counsel (prepared on the Order Granting Attorney's Motion to Be Relieved as Counsel -- Civil form (MC-053)).

The court finds that Plaintiffs' Counsel's moving papers are deficient. First, the two proofs of service filed on July 9, 2026, show that Plaintiffs' Counsel served Plaintiffs with the moving papers on July 9, 2026.

Thus, Plaintiffs' Counsel did not timely serve the moving papers. (Code Civ. Proc., § 1005, subd. (b) ["all moving and supporting papers shall be served and filed at least 16 court days before the hearing . . . and if the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 16-day period of notice before the hearing shall be increased by two calendar days"].) Second, Plaintiffs

Counsel's declaration also states that "Attorney has personally served the client with copies of the motion papers filed with this declaration." (MC-052, ¶ 3a.(1).) However, the proofs of service show that

Plaintiffs' Counsel served the moving papers on Plaintiffs by overnight delivery, not personal service. Third, pursuant to California Rules of Court rule 3.1362(d), notice of motion and the moving papers may be given by personal service, electronic service, or mail, not overnight delivery. (Cal. Rules of Court, rule 3.1362(d).)

The court therefore denies Plaintiffs' Counsel's motions to be relieved as counsel for Plaintiffs.

ORDER

The court denies Chirstopher B. Dolan, Maria Pappas-Rajotte, Allison Stone, and Anna Pantsulaya of Dolan Law Firm, PC's motions to be relieved as counsel without prejudice.

The court orders Chirstopher B. Dolan, Maria Pappas-Rajotte, Allison Stone, and Anna Pantsulaya of Dolan Law Firm, PC to give notice of this ruling.

IT IS SO ORDERED.

DATED: July 16, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court